

(4) Section one in so far as may be necessary for the purpose of determining the persons qualified to be elected, or to elect persons, to offices under sections three and four of this Act, section two and sections nine to thirteen of this Act and this section shall come into force on the passing of this Act, and the provisions of this Act other than the said provisions shall come into force on such day as Her Majesty may by Order in Council appoint, and different days may be appointed for different purposes.

(5) In that portion of the Act twenty George the Second, chapter thirty-two, which relates to the right of patronage and presentment of the Principal and the several professors in the United College of St. Salvator and St. Leonard the words "Principal and" where they first occur, and subsection (6) of section five and section sixteen of the Universities (Scotland) Act, 1889, are hereby repealed.

CHAPTER 41

An Act to provide for the constitution of a Scottish Hospital Endowments Research Trust; to empower the Hospital Endowments Commission to transfer endowments to the said Trust; to amend the provisions of the National Health Service (Scotland) Act, 1947, relating to the said Commission; and for purposes connected with the matters aforesaid.

[31st July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Secretary of State shall constitute, in accordance with the Schedule to this Act, a Scottish Hospital Endowments Research Trust (hereinafter referred to as "the Trust").

Scottish
Hospital
Endowments
Research
Trust.

(2) It shall be the duty of the Trust to hold and administer funds on trust for the purpose of assisting the conduct of research into any matters relating to the causation, prevention, diagnosis or treatment of illness or mental deficiency or to the development of medical or surgical appliances including hearing aids.

(3) The Trust shall have power to accept, hold and administer in accordance with the said Schedule any property on trust for the purpose aforesaid.

(4) Before deciding to give assistance in any particular case the Trust shall consult with any advisory committee on medical research which the Secretary of State may from time to time direct.

(5) The Trust shall cause proper accounts to be kept of the capital, income and expenditure vested in, received by, and expended by them, and shall cause such accounts to be audited and an abstract thereof to be published in such manner as the Secretary of State may approve.

(6) The Trust shall make an annual report of their proceedings to the Secretary of State, which report shall include an abstract of the accounts, and the Secretary of State shall lay any such report before each House of Parliament.

Additional
power of
Hospital
Endowments
Commission.
10 & 11 Geo. 6,
c. 27.

2.—(1) The Hospital Endowments Commission shall have power to frame and submit to the Secretary of State under section eight of the National Health Service (Scotland) Act, 1947, schemes for the transfer to the Trust of endowments transferred to Boards of Management under subsection (2) of section seven of the said Act, and the provisions of the said section eight shall apply to such schemes accordingly:

Provided that nothing in this section shall authorise the transfer to the Trust of endowments which in the aggregate yielded in the year ended the thirty-first day of March, nineteen hundred and fifty-two, an income exceeding one hundred and twenty thousand pounds.

(2) Any sums received by the Trust in pursuance of the last foregoing subsection shall be applied by them in the discharge of their functions under this Act.

(3) Section eight of the National Health Service (Scotland) Act, 1947 (which relates to the duty of the Hospital Endowments Commission to frame schemes for the government and management of endowments) shall be amended—

- (a) by the insertion in subsection (2) after the words “this Part of this Act” of the words “for the government and management of endowments so transferred”; and
- (b) by the substitution in the said subsection for the words “such endowments” in the second place where those words occur, of the words “endowments transferred under the said subsection (2) or under the power conferred by this subsection”.

Regulations.

3.—(1) The Secretary of State may make regulations for any of the following matters:

- (a) the appointment, and tenure and vacation of office, of the members of the Trust;
- (b) the procedure of the Trust;
- (c) the appointment, remuneration and conditions of service of officers of the Trust;

(d) the making of payments from the funds of the Trust to the members thereof in respect of any loss of earnings they would otherwise have made or any additional expenses (including travelling and subsistence expenses) to which they would not otherwise have been subject, being loss or expenses necessarily suffered or incurred by them for the purpose of enabling them to perform duties as members of the Trust;

(e) any matters consequential on or incidental to any of the aforesaid matters.

(2) The power conferred by the last foregoing subsection to make regulations shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

4.—(1) This Act shall extend to Scotland only and may be cited as the Hospital Endowments (Scotland) Act, 1953, and the National Health Service (Scotland) Acts, 1947 to 1952, and this Act may be cited together as the National Health Service (Scotland) Acts, 1947 to 1953. Extent,
citation and
construction.

(2) Save where the context otherwise requires, expressions in this Act have the same meanings as in the National Health Service (Scotland) Act, 1947.

SCHEDULE

SCOTTISH HOSPITAL ENDOWMENTS RESEARCH TRUST

Section 1.

1. The Trust shall consist of a chairman appointed by the Secretary of State and such number of other members so appointed as the Secretary of State may from time to time determine.

2. The Trust shall be a body corporate.

3. The Trust shall have power to purchase land and to invest in any securities in which trustees are authorised to invest under or in pursuance of the Trusts (Scotland) Act, 1921.

4. The Trust shall have, in relation to their funds, the like powers as trustees have in relation to their trust estate under subsection (1) of section four of the Trusts (Scotland) Act, 1921.

11 & 12 Geo 5.
c. 58.

5. Where the Trust borrow money or draw upon capital to meet expenditure of a capital nature, they shall set aside annually a sum sufficient to repay such loan or draft within a period which, unless the Secretary of State otherwise approves in any case, shall not exceed thirty years :

Provided that, in the case of a draft on capital to the extent only of surplus income added to capital, the foregoing provisions of this paragraph shall not apply.

6. The proceedings of the Trust shall not be invalidated by any vacancy in the membership thereof or by any defect in the appointment of a member.

